

Calendar Lines # 3
Case Name Robert Schraner et al vs Satvir Singh et al
Case No. 24CV434462
Motion for Terminating, Evidentiary, and/or Monetary Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND On This case stems from a multi-vehicle truck versus motor vehicle accident that occurred on May 9, 2022 on southbound Interstate-880 in San Jose, California. At the time of the incident, Defendant Satvir Singh was driving a 2017 Freightliner Cascadia tractor and trailer. Plaintiffs were drivers and/or passengers in one of the vehicles involved in the accident. B. RELEVANT PROCEDURAL BACKGROUND Two separate Complaints were filed against Defendants Satvir Singh and Golden Bird Inc. On October 11, 2024, parties stipulated to consolidating the pending cases: <i>Robert Scraner, Kha Le, and Seth Hofman vs. Satvir Singh, Gold Bird Inc., and Does 1 through 10</i> (Santa Clara County Case No.: 24CV434462) and <i>Edgar Nunez and Adrian Villalobos</i> (Santa Clara County Case No.: 24CV438580), which the Honorable Shella Deen granted on October 3, 2024. Santa Clara County Case No. was designated the lead case: 24CV434462. On March 25, 2025, Defendants filed a prior motion to compel Plaintiff's responses to written discovery. The Honorable Deen awarded sanctions against the plaintiff in the amount of \$670.50 that was to be paid within 10 days of service of the court's tentative ruling. Defendants state that the plaintiff failed to abide by the court order. Further, Honorable Deen addressed the Order to Show Cause for failure to appear by plaintiffs Edgar Nunez and Adrian Villalobos and their attorney Joseph Duc Dang and dismissed Plaintiff Edgar Nunez and Adrian Villalobos's Complaint without prejudice (Case No. 24CV438580 only). On September 25, 2025, Plaintiffs Edgar Nunez and Adrian Villalobos filed a motion to set aside the dismissal under Code of Civil Procedure section 473(b), which this Court heard on January 27, 2026 and granted. On March 24, 2026, Defendants Satvir Singh and Golden Bird Inc. filed a motion for terminating, evidentiary (precluding plaintiff from offering any evidence of injuries at trial), and/or monetary sanctions in the amount of \$1,290.00 against Plaintiffs Edgar Nunez and Adrian Villalobos (Case No. 24CV438580 only) for engaging in a continued and pervasive misuse of discovery process. Defense emphasizes that trial is set for January 4, 2027 and the defendants will be significantly prejudiced should this matter proceed without requested sanctions. (Plaintiff's motion, p. 2). The motion was accompanied by a proof of service indicating electronic mail and mail service on that same day. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court carefully reviewed the following: Defendants' notice of motion and memorandum of points and authorities (totaling 9 pages); the Declaration of Darren W. Epps in support of Defendants' motion and attached Exhibits A-D (totaling 18 pages); proof of services; and the pleadings. //

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

III. ANALYSIS

Here, Defendants Satvir Singh and Golden Bird Inc. assert that Plaintiffs Edgar Nunez and Adrian Villalobos have engaged in continuous and pervasive misuse of the discovery process by failing to respond to discovery. Defendant avers that the Plaintiffs Nunez and Villalobos failed to pay the \$670.50 of sanctions ordered by Judge Deen on March 25, 2025 after finding that the said plaintiffs failed to provide discovery responses to Form Interrogatories, set one, and Demand for Production, set one. (Declaration of Epps. P. 2; Exhibit A). Defendants sent a further meet and confer correspondence on January 27, 2026 regarding the outstanding discovery and payment of sanctions that were ordered by the court (*Id.*; Exhibit D). Defendants asserts that the plaintiff has failed to provide discovery responses or the sanctions that were ordered and continue to engage in ongoing tactics. (Plaintiff’s Motion, at p. 4). Defendants assert that the January 4, 2027 trial date is upcoming and the defendants will suffer significant prejudice should the matter proceed without he requested sanctions. (*Id.*, at p. 2).

The Defendants seeks terminating, evidentiary (precluding plaintiff from offering any evidence of injuries at trial), and/or monetary sanctions in the amount of \$1,290.00 against Plaintiff Edgar Nunez and Adrian Villalobos (Case No. 24CV438580 only) for engaging in a continued and pervasive misuse of discovery process. (*Id.*, at p. 7). Defendants counsel seeks six hours of time at the hourly rate of \$205.00 as well as \$60.00 in cost for filing fees associated with this motion. (*Id.*; Declaration of Epps).

The Court also notes that on March 25, 2025 after an order to show cause hearing, Judge Deen dismissed Plaintiffs Nunez and Villalobos Complaint (Case No. 24CV438580 only) for failure to appear by the said plaintiff and their attorney of record Joseph Duc Dang. Plaintiffs Nunez and Villalobos filed a motion to set aside the dismissal, which this Court heard on January 25, 2026 and granted after finding mandatory relief was warranted based on the Declaration of attorney Joseph Duc Dang admitting fault for the prior failures to appear and his inadvertence, and negligence pursuant to Code of Civil Procedure section 473(b).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court finds that the Defendants have met its burden of showing that he plaintiff has not complied with the court orders and discovery. Thus, the Court finds that monetary sanctions are appropriate given Plaintiffs Nunez and Villalobos refusal to comply with court ordered discovery regarding responses to Form Interrogatories, set one, and Demand for Production, set one and failure to pay the \$670.50 in sanctions that was imposed by Judge Deen on March 25, 2025. The responses and payment of sanctions were due within ten days of that ruling. It has been more than a year since that order and no responses or sanctions were paid. This is undue delay. Trial is set in seven months and failure to provide discovery may result in terminating or evidentiary sanctions. The court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes, supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky, supra*, Cal.App.4th at 279–280).

Accordingly, at this time the Court will decline to impose terminating or evidentiary sanctions. The Court will award the full amount of monetary sanctions requested by the Defendants as reasonable and warranted in an amount of \$1,290.00 in addition to the March 25, 2025 ordered amount of \$670.50. However, Plaintiffs Nunez and Villalobos are admonished to comply with Court orders and discovery process, further refusal to comply with either may result in evidentiary or terminating sanctions.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the motion for terminating and evidentiary sanctions is DENIED without prejudice at this time. The motion for monetary sanctions in the amount of \$1,290.00 in favor of Defendants Satvir Singh and Golden Bird Inc. and against Plaintiffs Edgar Nunez and Adrian Villalobos is GRANTED.

Plaintiffs Edgar Nunez and Adrian Villalobos are ORDERED to Comply with discovery responses ordered on March 25, 2025 and provide response within 10 days of this hearing.

Plaintiffs Edgar Nunez and Adrian Villalobos are ORDERED to pay the \$1,290.00 in sanctions as well as the \$670.50 prior court ordered sanction on March 25, 2025 to be paid within 10 court days of this hearing.

The Court will prepare the formal Order.